

58	Sowersby v. Molina, et al. 30-2025-01513523	Defendant Lyft, Inc.'s motion for order compelling Plaintiff Justin Sowersby to arbitrate his claims against Lyft in this action, is granted. <u>The Federal Arbitration Act ("FAA")</u> The FAA (9 U.S.C. §§ 1-14) governs contractual arbitration in written contracts involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§ 1, 2.) Here, Lyft has met its burden of showing that the FAA applies. (Carr Decl., Exh. 8 § 17; see <i>Allied-Bruce Terminix Cos., Inc. v. Dobson</i> (1995) 513 U.S. 265, 277; <i>Shepard v. Edward Mackay Enterprises, Inc.</i> (2007) 148 Cal.App.4th 1092, 1097.) The delegation analysis is the same under the FAA and the California Arbitration Act. (<i>Tiri v. Lucky Chances, Inc.</i> (2014) 226 Cal.App.4th 231, 240-242.) <u>Delegation</u> Arbitration is a matter of contract. A party cannot be required to submit to arbitration any dispute which he or she has not agreed so to submit. (<i>AT&T Technologies v. Communications Workers</i> (1986) 475 U.S. 643, 648.) Plaintiff does not dispute the existence of the agreement to arbitrate but only whether the agreement to arbitrate: (1) should not be enforced due to the possibility of inconsistent results enforceable and (2) encompasses motor vehicle accidents. (See Opp., at pp. 2-9.) Lyft argues that the arbitrator, not the court, must decide if the claims in the Complaint are arbitrable. (Mot., at pp. 12-13.) Courts presume that the parties intend courts, not arbitrators, to decide disputes about arbitrability. (<i>UBC Group PLC v. Republic of Argentina</i> (2014) 572 U.S. 25, 34.) The question whether the parties agreed to arbitrate the particular dispute is to be decided by the court, not the arbitrator, unless the parties clearly and unmistakably provide otherwise. (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944; <i>Ajamian v. CantorCO2e, L.P.</i> (2012) 203 Cal.App.4th 771, 781-782.) When the parties have agreed to an arbitration provider's rules and the rules include the arbitrator's power to determine arbitrability, the parties' intent to delegate is clear and unmistakable. (<i>Greenspan v. LADT, LLC</i> (2010) 185 Cal.App.4th 1413, 1442, 1443; <i>Dream Theater, Inc. v. Dream Theater</i> (2004) 124 Cal.App.4th 547, 553, 557; <i>Aanderud v. Superior Court</i> (2017) 13 Cal.App.5th 880, 893.) Here, Lyft has presented an arbitration agreement which provides in relevant part:
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	this Arbitration Agreement applies to all Claims (defined below) between you and Lyft, Except as expressly provided below, ALL DISPUTES AND CLAIMS BETWEEN US (EACH A "CLAIM" AND COLLECTIVELY, "CLAIMS") SHALL BE EXCLUSIVELY RESOLVED BY BINDING ARBITRATION SOLELY BETWEEN YOU AND LYFT. These Claims include, but are not limited to, any dispute, claim or controversy, whether based on past, present, or future events, arising out of or relating to: this Agreement and prior versions thereof (including the breach, termination, enforcement, interpretation or validity thereof), the Lyft Platform, the Rideshare Services, the Lyft Services, Lyft promotions, gift card, referrals or loyalty programs, the Lyft Tablet, any other goods or services made available through the Lyft Platform by Lyft or a third-party provider, your relationship with Lyft, the threatened or actual suspension, deactivation or termination of your User Account or this Agreement, background checks performed by or on Lyft's behalf, payments made by you or any payments made or allegedly owed to you, any promotions or offers made by Lyft, any city, county, state or federal wage-hour law, trade secrets, unfair competition, compensation, breaks and rest periods, expense reimbursement, wrongful termination, discrimination, harassment, retaliation, fraud, defamation, emotional distress, breach of any express or implied contract or covenant, claims arising under federal or state consumer protection laws; claims arising under antitrust laws, claims arising under the Telephone Consumer Protection Act and Fair Credit Reporting Act; and claims arising under the Uniform Trade Secrets Act, Civil Rights Act of 1964, Americans With Disabilities Act, Age Discrimination in Employment Act, Older Workers Benefit Protection Act, Family Medical Leave Act, Fair Labor Standards Act, Employee Retirement Income Security Act of 1974 (except for individual claims for employee benefits under any benefit plan sponsored by Lyft and covered by the Employee Retirement Income Security Act of 1974 or funded by insurance), and state statutes, if any, addressing the same or similar subject matters, and all other federal and state statutory and common law claims. All disputes concerning the arbitrability of a Claim (including disputes about the scope, applicability, enforceability, revocability or validity of the Arbitration Agreement) shall be decided by the arbitrator, except as expressly provided below. (Carr Decl., at ¶¶ 12.f and 12.g, Exh. 8 [emphasis added].) Accordingly, the parties' intent to delegate is clear and
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unmistakable. The arbitrator must determine the issues of scope and enforceability.

To be found unconscionable and thus unenforceable, a gateway delegation in an arbitration agreement must be separately challenged as unconscionable. (*Tiri v. Lucky Chances, Inc.*, *supra*, 226 Cal.App.4th at p. 240 [citing *Rent-A-Car Jackson* (2010) 561 U.S. 63, 71-73].) Plaintiff has not separately challenged the delegation provision as unconscionable. Accordingly, the motion to compel arbitration is granted.

Code of Civil Procedure Section 1281.2

As noted by Plaintiff, there is another Defendant in this case. Plaintiff argues that pursuant to Code of Civil Procedure section 1281.2, the court should deny the motion to compel arbitration. (Opp., at pp. 2-5.) Code of Civil Procedure section 1281.2, subdivision (c) allows a court to refuse to enforce an agreement to arbitrate, if the court determines that "[a] party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact." "Unlike the procedure in California, the FAA by its terms 'leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration on issues as to which an arbitration agreement has been signed.'" (*Los Angeles Unified School Dist. v. Safety National Casualty Corp.* (2017) 13 Cal.App.5th 471, 479 [quoting *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218].) As the United States Supreme Court observed, the FAA "requires district courts to compel arbitration of pendant arbitrable claims when one of the parties files a motion to compel, even where the result would be the possible inefficient maintenance of separate proceedings in different forums." (*Dean Witter Reynolds, Inc. v. Byrd*, *supra*, 470 U.S. at p. 217; see 9 U.S.C. § 3.)

As a result, the court cannot deny the arbitration of Plaintiff's claims against Lyft, even if the result would be the possible inefficient maintenance of separate proceedings in different forums. Accordingly, Plaintiff is ordered to arbitrate his claims against Lyft. The action against Lyft is stayed pending final resolution of the arbitration. (Code Civ. Proc., § 1281.4; 9 U.S.C. § 3.) The court sets an arbitration status conference for November 13, 2026, at 9 am in this Department.

Defendant shall give notice of this ruling and of the arbitration status conference.

CASE MANAGEMENT CONFERENCE

[illegible]